Automated License Plate Readers (ALPRs)

457.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidance for the capture, storage and use of digital data obtained through the use of Automated License Plate Reader (ALPR) technology.

457.2 ADMINISTRATION OF ALPR DATA

All installation and maintenance of ALPR equipment, as well as ALPR access shall be managed by the Operations Support Bureau Commander. The Operations Support Bureau Commander will assign personnel under his/her command to administer the day-to-day operation of the ALPR equipment and data.

All data collected by ALPR technology is downloaded to a server housed and maintained by the Northern California Regional Intelligence Center (NCRIC). In compliance with SB 34 refer to the attached policy of the NCRIC:

http://www.dalycity.org/City_Hall/Departments/police_department/Automated_License_Plate_Reader.htm

457.2.1 ALPR ADMINISTRATOR

The Operations Support Bureau Commander shall be responsible for developing guidelines and procedures to comply with the requirements of Civil Code § 1798.90.5 et seq. This includes, but is not limited to (Civil Code § 1798.90.51; Civil Code § 1798.90.53):

(a) A description of the job title or other designation of the members and independent contractors who are authorized to use or access the ALPR system or to collect ALPR information.

(b) Training requirements for authorized users.

(c) A description of how the ALPR system will be monitored to ensure the security of the information and compliance with applicable privacy laws.

(d) Procedures for system operators to maintain records of access in compliance with Civil Code § 1798.90.52.

(e) The title and name of the current designee in overseeing the ALPR operation.

(f) Working with the Custodian of Records on the retention and destruction of ALPR data.

(g) Ensuring this policy and related procedures are conspicuously posted on the department's website.

457.3 OPERATIONS

Use of an ALPR is restricted to the purposes outlined below. Department members shall not use, or allow others to use the equipment or database records for any unauthorized purpose (Civil Code § 1798.90.51; Civil Code § 1798.90.53).

(a) An ALPR shall only be used for official law enforcement business.

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(b) An ALPR may be used in conjunction with any routine patrol operation or criminal investigation. Reasonable suspicion or probable cause is not required before using an ALPR.

(c) While an ALPR may be used to canvass license plates around any crime scene, particular consideration should be given to using ALPR-equipped cars to canvass areas around homicides, shootings and other major incidents. Partial license plates reported during major crimes should be entered into the ALPR system in an attempt to identify suspect vehicles.

(d) No member of this department shall operate ALPR equipment or access ALPR data without first completing department-approved training.

(e) No ALPR operator may access department, state or federal data unless otherwise authorized to do so.

(f) If practicable, the officer should verify an ALPR response through the California Law Enforcement Telecommunications System (CLETS) before taking enforcement action that is based solely on an ALPR alert.

457.4 DATA COLLECTION AND RETENTION

The Operations Support Bureau Commander is responsible for ensuring systems and processes are in place for the proper collection and retention of ALPR data. Data will be transferred from vehicles to the designated storage in accordance with department procedures.

All ALPR data downloaded to the server should be stored for a minimum of one year (Government Code § 34090.6) and in accordance with the established records retention schedule. Thereafter, ALPR data should be purged unless it has become, or it is reasonable to believe it will become, evidence in a criminal or civil action or is subject to a discovery request or other lawful action to produce records. In those circumstances the applicable data should be downloaded from the server onto portable media and booked into evidence.

457.5 ACCOUNTABILITY

All data will be closely safeguarded and protected by both procedural and technological means. The Daly City Police Department will observe the following safeguards regarding access to and use of stored data (Civil Code § 1798.90.51; Civil Code § 1798.90.53):

(a) All ALPR data downloaded to the mobile workstation and in storage shall be accessible only through a login/password-protected system capable of documenting all access of information by name, date and time (Civil Code § 1798.90.52).

(b) Members approved to access ALPR data under these guidelines are permitted to access the data for legitimate law enforcement purposes only, such as when the data relate to a specific criminal investigation or department-related civil or administrative action.

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(c) ALPR system audits should be conducted on a regular basis.

For security or data breaches, see the Records Release and Maintenance Policy.

457.6 RELEASING ALPR DATA

The ALPR data may be shared only with other law enforcement or prosecutorial agencies for official law enforcement purposes or as otherwise permitted by law, using the following procedures:

(a) The agency makes a written request for the ALPR data that includes:

1. The name of the agency.
2. The name of the person requesting.
3. The intended purpose of obtaining the information.

(b) The request is reviewed by the Operations Support Bureau Commander or the authorized designee and approved before the request is fulfilled.

(c) Forwarded to NCRIC for review.

Requests for ALPR data by non-law enforcement or non-prosecutorial agencies will be processed as provided in the Records Maintenance and Release Policy (Civil Code § 1798.90.55).

457.7 POLICE ASSISTANT USE

(a) The primary use for Police Assistants will be using the LPR vehicle to detect and process scofflaw vehicles -or- vehicles with 5 or more delinquent parking citations on file.

(b) The vehicle(s) equipped with an LPR system can be used by any police assistant when that vehicle is not being driven by its assigned driver(s).

(c) The driver(s) of the LPR equipped vehicle(s) must alert the designated boot team of the day whenever they get a hit on a vehicle with 5 or more parking citations. The driver will take note of the location of the hit and the vehicle description, and send it to the boot team promptly via messaging or a phone call; this should be done right away and not held until the end of shift. Although the system tracks all hits/locations throughout the day, the report is not available until the following day from a computer at the station.

(d) A secondary function of the LPR system is that it will detect 10851 stolen vehicles that are in the Stolen Vehicle System database. Police Assistants will follow normal protocol as if they had manually run the license plate via the computer or police radio.

(e) Selection of the LPR equipped vehicle(s) will be done by seniority during the semi-annual watch change, per standard practice.

(f) The LPR equipped vehicle(s) should ot be used for Court Officer duties and other details that involve sitting idle for extended periods of time. Maximum exposure is important to ensure that the department is taking full advantage of this resource.

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(g) The LPR vehicle(s) should also be taken to DUI checkpoints where having such a vehicle scanning license plates passing through the screening lane(s) would be beneficial.

457.8 TRAINING

The Training Sergeant should ensure that members receive department-approved training for those authorized to use or access the ALPR system (Civil Code § 1798.90.51; Civil Code § 1798.90.53).

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